IN THE NATIONAL COMPANY LAW TRIBUNAL
ALLAHABAD BENCH

CA (CAA) No.02/ALD/2022
(Under Sections 230-232 of the Companies Act, 2013)

In the matter of
The Companies Act, 2013

And

In the matter of
Sections 230-232, and other applicable provisions of the Companies Act, 2013 read with the Companies (Compromises, Arrangements, and Amalgamations) Rules, 2016

And

In the matter of
Scheme of Arrangement of Kohinoor Tie-up Private Limited (Transferor Company No.1), Nitin Instruments Private Limited (Transferor Company No.2), Manhattan Projects & Infrastructure Private Limited (Transferor Company No.3), Sahni Buildwll & Exim Private Limited (Transferor Company No.4) with Shikhar Projects & Infrastructure Private Limited (Transferee Company) and their respective shareholders

Kohinoor Tie-up Private Limited, having Corporate Identification Number as U 51109UP2007PTC127853 and having its registered office situated at 302, Surya Lake View Apartment Vikalp Khand, Gomti Nagar Lucknow-226010, Uttar Pradesh.

..Applicant Company No.1/ "Transferor Company No.1"

And

Nitin Instruments Private Limited, having Corporate Identification Number as **U** 85110UP1989PTC125642 and having its registered office situated at C-45, Sector-A, Mahanagar, Lucknow-226006, Uttar Pradesh.

…Applicant Company No.2/ "Transferor Company No.2"

And

Manhattan Projects & Infrastructure Private Limited, having Corporate Identification Number as U65922UP1997PTC022225 and having its registered office situated at Hotel Utsav, Circular Road, Hardoi-241001, Uttar Pradesh.

…Applicant Company No.3/ "Transferor Company No.3"

—Sd—

And

Sahni Buildwell & Exim Private Limited, having Corporate Identification Number as U74899UP1993PTC121663 and having its registered office situated at 401, 04th Floor, Shalimar Square, B. N. Road, Lalbagh, Lucknow-226001, Uttar Pradesh.

…Applicant Company No.4/ "Transferor Company 4"

And

Shikhar Projects & Infrastructure Private Limited, having Corporate Identification Number as U67120UP1995PTC125356 and having its registered office situated at 2/881, Vinay Khand, Gomti Nagar, Lucknow-226010 Uttar Pradesh.

…..Applicant Company No.5/ "Transferee Company"

their respective Shareholders and Creditors

Date of Hearing: 12.01.2022

Date of Pronouncement: 24.01.2022

Coram (Special Bench):

Shri Rajasekhar V. K.	:	Member (Judicial)
Shri Balraj Joshi	:	Member (Technical)

Appearances (via videoconferencing):

For the Applicants	:	Shri Naresh Kumar, Advocate Shri Ankit Kumar Singh, PCS

ORDER

Per: Rajasekhar V. K., Member (Judicial)

1. The instant application has been filed in the first stage of the proceedings under Section 230(1) read with Section 232(1) of the Companies Act, 2013 ("**Act**") for orders and directions with regard to meetings of shareholders and creditors in connection with the Scheme of Amalgamation amongst Kohinoor Tie-up Private Limited ("**Applicant Company No.1**" **or "Transferor Company No.1"**), Nitin Instruments Private Limited ("**Applicant Company No.2**" **or "Transferor Company No.2"**), Manhattan Projects & Infrastructure Private

—Sd—

Limited ("**Applicant Company No.3**" **or "Transferor Company No.3"**), Sahni Buildwell & Exim Private Limited ("**Applicant Company No.4**" **or "Transferor Company No.4"**) with Shikhar Projects & Infrastructure Private Limited ("**Applicant Company No.5**" **or "Transferee Company**"); and their respective Shareholders and Creditors ("**Scheme**" or "**Scheme of Amalgamation**"). The Scheme *inter-alia* provides for amalgamation of the Transferor Company 1, Transferor Company 2, Transferor Company No.3 and Transferor Company 4 into the Transferee Company, amalgamation of the Amalgamating Companies 4 with the Amalgamated Company in the manner and on the terms and conditions stated in the said Scheme of Amalgamation enclosed as **Annexure-A7** to the Company Application.

2. It is submitted by Ld. counsel appearing for the Applicant Companies that the shares of the Applicant Companies are not listed on Stock Exchanges. Further, the Applicants have the following classes of shareholders and creditors as on October 31, 2021:

   (a) Applicant Company No.1: 03 Equity Shareholders and Nil Secured and Unsecured Creditors;

   (b) Applicant Company No.2: 04 Equity Shareholders and Nil Secured Creditor and 1 Unsecured Creditors;

   (c) Applicant Company No.3: 04 Equity Shareholders and Nil Secured and Unsecured Creditors;

   (d) Applicant Company No.4: 03 Equity Shareholders and Nil Secured Unsecured Creditors;

   (e) Applicant Company No.5: 03 Equity Shareholders and Nil Secured and Unsecured Creditors;

3. In regard to Applicant Company No.1/Transferor Company No.1, it is submitted that there are 03 equity shareholders, Nil Secured Creditor and Nil Unsecured creditors and all the equity shareholders have already given their consent to the Scheme by way of affidavits which are annexed to the application.

—Sd—

4. In regard to Applicant Company No.2/Transferor Company No.2, it is submitted that there are 04 equity shareholder, Nil Secured Creditor and 01 unsecured creditor and all the equity shareholder and unsecured creditor have already given their consent to the Scheme by way of affidavits which are annexed to the application.

5. In regard to Applicant Company No.3/Transferor Company No.3, it is submitted that there are 04 equity shareholder, Nil Secured Creditors and Nil unsecured creditor and all the equity shareholders have already given their consent to the Scheme by way of affidavits which are annexed to the application.

6. In regard to Applicant Company No.4/Transferor Company No.4, it is submitted that there are 03 equity shareholder, Nil Secured Creditor and Nil unsecured creditor and all the equity shareholders have already given their consent to the Scheme by way of affidavits which are annexed to the application.

7. In regard to Applicant Company No.5/Transferee Company, it is submitted that there are 03 equity shareholders, Nil secured creditors and Nil unsecured creditors and all the equity shareholders have already given their consent to the Scheme by way of affidavits which are annexed to the application.

8. Directions are sought accordingly for (a) dispensing with the requirement of convening meetings of the Equity Shareholders of all the Applicant Companies who have already given their consent to the Scheme; (b) dispense with the requirement of convening the meeting of the Unsecured Creditors of the Applicant Company No.2, who have has already given their consent to the Scheme.

9. Upon perusing the records and documents in the instant proceedings and considering the submissions made on behalf of the Applicant Companies, we allow the instant application and make the following orders:-

—Sd—

Meetings dispensed: Meetings of the Equity Shareholders of the Applicant Cos. No.1 to 4 and the Transferee Company and unsecured creditors of the Applicant Cos. No.2 are dispensed with under Section 230(1) read with Section 232(1) of the Act in view of their filing consent affidavits.

10. Notice under Section 230(5) of the Companies Act, 2013 along with all accompanying documents, including a copy of the aforesaid Scheme and statement under the provisions of the Companies Act, 2013 shall also be served on the (i) Central Government through the Regional Director, Northern Region, Ministry of Corporate Affairs; (ii) Registrar of Companies, Uttar Pradesh within whose jurisdiction the Applicant Companies are registered; (iii) Income- Tax Authorities within whose jurisdiction the Applicant Companies are assessed, clearly indicating the PAN of the company concerned; (iv) the Official Liquidator, High Court, Allahabad; by hand delivery or by registered / speed post or by email forthwith. The notice shall specify that representation, if any, should be filed before this Tribunal within 30 days from the date of receipt of the notice with a copy of such representation being simultaneously sent to the Advocate of the said Applicants. If no such representation is received by the Tribunal within such period, it shall be presumed that such authorities have no representation to make on the said Scheme of Arrangement. Such notice shall be sent pursuant to Section 230(5) of the Companies Act, 2013 read with Rule 8(2) of the Companies (Compromises, Arrangements and Amalgamations) Rules 2016 in Form No.CAA3 of the said Rules with necessary variations, incorporating the directions herein.

11. The Applicants to file an affidavit proving service of notices to the Statutory Authorities.

12. The connected company petition be filed within a period of four weeks, considering the present pandemic conditions.

—Sd—

13. The application being Company Application (CAA) No.02/ALD/2022 is disposed of accordingly.

14. Certified copies of this Order, if applied for, be provided to the parties concerned upon completion of usual formalities.

—Sd—

Rajasekhar V K
Digitally signed by Rajasekhar V K
Date: 2022.01.24 20:07:41 +05'30'

Balraj Joshi
Member (Technical)

Rajasekhar V.K.
Member (Judicial)

Swati Gupta, LRA